4484

Executive Order

Article XXVII of the Consular Regulations, 1896, entitled "Consular Accounts and Returns", is hereby canceled and the following substituted:

ARTICLE XXVII

Accounts and Returns

534. *General accounts.*—Consular officers are required to keep separate general accounts of all public or other moneys coming into their possession in their official capacity from any source and for any purpose whatever and to render accounts of the same in such manner, on such forms, and at such times as may be prescribed by the Comptroller General of the United States or the Department of State.

535. *Special accounts.*—In case a special account for any purpose is opened by request of any Department or establishment of the government, that account will be kept separate, and a separate return made thereof for transmission by the Department of State to the proper Department or establishment. Expenditures incurred for any other Department or establishment of the government are not to be included in any account against the Department of State unless specifically so authorized.

536. *Accounts to be rendered quarterly.*—All accounts, except an account for a period of less than a full quarter when an officer has surrendered charge of an office, and the final account, must be rendered at the close of the calendar quarter, viz: On the 31st of March, 30th of June, 30th of September, and 31st of December. The quarters are to be designated thus: "Quarter ending March 31, 19—:" "Quarter ending June 30, 19—;" "Quarter ending September 30, 19—;" and "Quarter ending December 31, 19—." Quarterly and other accounts must be mailed or otherwise sent to the Department in Washington within twenty days after the period to which they relate.—*28 Stat. L. 209.*

537. *Accounts not to cover different fiscal years.*—No one account, except travel accounts, may embrace time or transactions belonging to different fiscal years. Appropriations and adjustments are confined to the fiscal years ending June 30, and when, for instance, an expenditure for the relief of a seaman extends from one fiscal year into another, two accounts should be rendered.

538. *Transmission of accounts to the Department of State.*—All accounts and returns of consular officers, with the exception of Form No. 126, are to be transmitted to the Department of State. Form No. 126 is to be sent direct to the Comptroller General of the United States. Accounts should be sent to the Department of State under cover of a triplicate despatch. An account ordered by special instruction should be transmitted by a separate despatch which should be in triplicate. Accounts must be rendered in duplicate and a copy retained in the files of the consulate.

539. *Office records of accounts.*—All accounts other than those for which special record books are provided, including the general quarterly accounts, should be kept in the Miscellaneous Record Book or in a general account book prescribed by the Department.

540. *Accounts to be stated in currency of the United States.*—All accounts of consular officers must be stated in the currency of the United States; and all drafts on the Secretary of State must be drawn, not in foreign money of account or currency, but in the money of the United States. In all cases when the disbursements are actually made in foreign currency the vouchers themselves should be taken and rendered to the Comptroller General of the United States in the same

currency in which the disbursements are made; and when the value quoted in the Secretary of the Treasury's quarterly proclamation of value of foreign coins is not used in the reduction of the payments to the currency of the United States, satisfactory evidence should accompany the accounts as to the correct valuation of such foreign currency in the coinage of the United States, or the standard money of the country in which the transaction occurred, either in the form of a certificate of a responsible banker or of a consular officer himself based on authentic quotations. Where a currency foreign to the standard currency of the country where the consular officer is located, or a depreciated currency of said country is involved, a certificate must be furnished showing the relative value of the foreign or depreciated currency to the standard currency of the foreign country where the consular officer is located; or, where the facts are such and they are stated in the account, the account may be rendered to show the value of such foreign or depreciated currency in the standard currency of the United States, and the evidence required to show such value shall be a proper banker's certificate of commercial exchange rates unless otherwise required by the Comptroller General of the United States.

Preparation of Accounts

541. *Vouchers required.*—Unless otherwise specially instructed, a proper and satisfactory voucher must be furnished for every disbursement by consular officers. Each voucher must show on its face the kind of currency in which paid, and if paid in foreign currency, it must show the amount reduced to its equivalent in the standard currency of the United States and the rate at which the reduction is made. Vouchers must be in the English language or accompanied by a translation. They must show exactly for what the disbursement was made, and must be numbered and referred to in the corresponding account by number. Expenditures covered by vouchers in a foreign language not accompanied by translations will be suspended by the accounting officers. Original vouchers must be furnished in all cases.

All vouchers for moneys expended for any official purpose whatever must represent the amounts actually and necessarily paid for the purposes specified, to the exclusion of any pecuniary or material benefit directly or indirectly accruing to the officer making the expenditure and accounting therefor or to any person other than the one signing the receipt.—*35 Stat. L. 1094, Sec. 29; 35 Stat. L. 1095, Sec. 35; 35 Stat. L. 1105, Sec. 86.*

542. *Contingent expenses.*—The account for contingent expenses in a consulate (Form No. 90.) is to be transmitted by the officer in charge, accompanying his account current (Form No. 222–222a.), to the Department of State at the end of each quarter or period to which it relates.

543. *Telegraph charges.*—Vouchers for charges for telegrams must be accompanied by

(1) Copies of the transmitted text of all telegrams and receipts from the telegraph companies for payments made to them. When the vouchers are for telegrams in Department cipher both the receipt and copies of telegrams are to be indorsed with the words "Foreign Intercourse", followed by the initials of the responsible consular officer.

(2) A "Schedule of telegrams and cablegrams, Foreign Service" (Form No. 250.), showing the date, number, addressee, destination, number of words, rate per word in foreign currency, the total charge in foreign currency, and the equivalent in United States currency of each message sent during the period covered by the account.

Copies of telegrams sent in commercial code will not be indorsed as above but will be accompanied by translations.

544. *Postage charges.*—Consular officers are required to support their charges for postage by a certificate (Form No. 188.) setting forth the amounts so charged on letters sent, including postage on triplicate invoices, and postage on short paid letters. Postage is not to be charged in the accounts of a consular officer except on despatches and letters received and sent by him on official business and by

reason of his office. The accounts for this disbursement will be carefully examined and no allowance for postage of a purely personal character will be made.

545. *Charges on official supplies, furniture, etc.*—The amount of customs and other charges paid on official supplies, furniture, or other articles of government property sent to or from a consulate, are proper charges against the government. The vouchers for such charges should be accompanied by a memorandum showing in general terms the kind and quantity of the supplies or property upon which the charges were made.

546. *Furniture.*—It is expected of consular officers that their offices should be suitably furnished. For this purpose they are allowed for furniture such articles as the Secretary of State shall deem necessary for the good of the service. In all cases, before incurring expense for furniture, consular officers will obtain the sanction of the Department of State; and in their applications they will be careful to state the articles required and the estimated cost of each.

547. *Clerk hire.*—The account for allowance for clerks in a consulate (Form No. 165.) is to be transmitted by the officer in charge to the Department of State accompanying his account current (Form No. 222–222*a*.) at the end of each quarter or period to which it relates. It must be accompanied by the receipt (Form No. 166–166*a*.) of each person employed as clerk, bearing the Consul's certificate that the service has been performed as charged, and that the account is correct and just.

Whoever, being charged with the payment of any appropriation made by Congress, pays to any clerk or other employee of the United States a sum less than that provided by law, and requires such employee to receipt or give a voucher for an amount greater than that actually paid to and received by him, is guilty of embezzlement, and shall be fined in double the amount so withheld from any employee of the Government and imprisoned not more than two years.—*35 Stat. L. 1105.*

Similar provisions of law apply to making, transmitting, or presenting to any officer of the Government, false documents intended to obtain from the United States or any such officer, any sum of money. (See 35 Stat. L. 1094 and 1095.)

548. *Consular officers not to accept voluntary service.*—It is provided by statute that no Department or officer of the Government shall accept voluntary service for the Government nor employ personel service in excess of that authorized by law, except in cases of sudden emergency involving the loss of human life or the destruction of property.—*R. S. 3679, amended March 3, 1905, and February 27, 1906.*

549. *Transportation and subsistence.*—The actual and necessary expenses for the transportation, and the actual and necessary subsistence expenses or per diem in lieu of subsistence, of Foreign Service officers, and clerks at consulates, while traveling under orders of the Secretary of State, expenses for transportation and subsistence of their families, and for the transportation of their effects, are paid by the Government under the statutes, rules, and travel regulations applying thereto.

550. *Consular court accounts.*—All fees and fines, imposed and collected by consular courts are to be used to defray the expenses of such courts and detailed accounts of receipts and expenditures must be rendered to the Secretary of State on the 30th of June each year (Form No. 216) by the officer in charge of the consulate. Any surplus remaining at the end of the fiscal year, after the expenses of the court have been paid, is to be covered into the Treasury.

The account must be supported by proper vouchers for all expenditures, and must be signed, sealed and properly indorsed. Each case must stand by itself and show all fees and fines assessed and collected, and all disbursements made. At the end of the account should be appended a recapitulation or summary showing the total fees and fines received in each case and the total disbursements made. The balance after deducting the disbursements may be turned into the Treasury by being charged against the officer in his account current (Form No. 222.) for the quarter as "Balance from the consular court account for the fiscal year ending June 30, 19—" but such action must be accurately noted in the consular court return. If fees are insufficient to pay expenses, the balance is payable from the contingent expense appropriation.

All fees collected under the consular court regulations, all fines, and all disbursements from the consular court fund, must be entered in a separate court

record and are not to be inscribed in the Record of Fees, nor are they to be included in the transcripts of such book sent to the Department of State.

As the law prescribing the use of fee stamps refers only to consular and notarial acts, and not to judicial services, fee stamps are not to be used for services performed under the laws and regulations governing the consular courts.

551. *Expenses of prisons for American convicts.*—The account for expenses of maintaining, in countries in which American consular officers exercise judicial authority, institutions for incarcerating American convicts and persons declared insane by the United States Court for China or any Consular Court, is to be transmitted quarterly, with the necessary vouchers, when such expenses shall have been incurred, to the Department of State. This account covers the actual cost of rent of prison, prison expenses, keeping, feeding, medical attention, medicines, and transportation of prisoners, and persons declared insane by the United States Court for China or any Consular Court, and wages of prison keepers; and a deputy marshal and three assistant deputy marshals at Shanghai. Forms Nos. 194–195 are suitable for use in rendering this account.—*28 Stat. L. 824.* No expenditures for repairs or furniture or equipment of prisons should be made without prior authority from the Department.

Accounts Relating to Seamen and Vessels

552. *Accounts relating to seamen.*—The returns to be made under this general account are: (1) Statement of relief of seamen and account current, (Form No. 94); (2) Detailed list of seamen discharged, shipped, deserted and deceased, (Form No. 124); (3) Return of seamen who have come upon the consulate otherwise than in the employment of vessels or by regular discharge therefrom (Form No. 126). This last is to be forwarded to the Comptroller General of the United States on the date of the arrival of the seamen at the consulate. The others are to be rendered quarterly to the Department of State or whenever the consul in charge renders accounts provided there are transactions to report. Attention is called to Article XV herein for information as to the items to be embraced in the account for the relief of seamen and the vouchers to sustain them.

553. *Statement of relief of seamen and account current.*—This return (Form No. 94) should be a complete statement of the entire receipts and disbursements on account of wages and extra wages of seamen collected and disbursed (amount carried from Form No. 124) and on account of the relief of seamen during the quarter or period for which it is rendered. Where seamen have been discharged with one month's extra wages, the grounds on which they have been so discharged should be noted on the statement in the column headed "Remarks". So, also, where seamen have come upon a consulate casually, or otherwise than in the employment of vessels or by regular discharge therefrom, the manner in which they came upon the consulate should be stated, with the names of the vessels on which they were last employed and the ports to which they belong; and particulars (as full as possible) should be given showing how and why such seamen left the employment of their vessels. The statement of account at the bottom of the form should show on the debit side the amount disbursed for the relief of seamen and the balance of wages paid to the seamen, and on the credit side it should show the full amount of extra wages and arrears and other moneys received for seamen. For any balance that may be due from the United States on this account, the consul may draw on the Secretary of State unless he has in his hands sufficient funds to pay the same from surplus fees.

554. *Detailed list of seamen discharged, shipped, deserted, and deceased.*—This return (Form No. 124) is clearly explained by its title. Consular officers are required by section 7 of the Act of June 26, 1884, to collect all arrears of wages due to seamen at the time of their discharge.—*23 Stat. L. 55.* A return of these wages, and of the extra wages collected, should be made quarterly on the prescribed form with the regular office accounts supported by the seamen's receipts therefor, and should accompany the quarterly account current (Form No. 94.).

555. *Ships' bills to be made in duplicate.*—All consular bills against vessels of the United States for moneys collected shall be made in duplicate and shall show

each item of charge, including all moneys received for wages and extra wages, corresponding in these respects to the entries in the "Ship's daily journal". The originals of such receipts are to be delivered to the master of the vessel; and the duplicates, after being countersigned by the master, are to be sent by the consular officer as vouchers to the proper quarterly account. In case the signature of the master can not from any cause be obtained, the reasons therefor should be reported at the time of sending the account.

556. *Statement of official services for shipmaster.*—(Return made by consular agents at seaports). This statement (Form No. 167) must be issued in duplicate, one copy to be furnished to the master of the vessel for whom the services are performed and the other to be transmitted with the accounts. This form must contain the items of the services performed and the amount claimed therefor. It must be signed by the consular officer and certified as correct by the shipmaster. The tariff number of the official fee must appear in the column for "No. of fee", opposite each item of service, showing the authority for the charge.

557. *Detailed report of official services to American vessels and seamen.*—(Return made by consular agents at seaports). This report (Form No. 168) must contain a detailed report of all the official services rendered during the quarter, and must be sworn to before an officer authorized to administer oaths.

Under the head of "Remarks" on this form the consular officer should explain opposite the name of each United States vessel for which a fee is charged "For receiving and delivering ship's register and papers", etc., the nature of the trip of the vessel, whether "running regularly by weekly or monthly trips, or otherwise", and state "the foreign port where the principal offices of the steamship company or owners are located".—*R. S. Sec. 1720.*

Salary Accounts

558. *Salary account and certificate as to absence.*—The salary accounts of Foreign Service officers (Forms Nos. 106–106*a* and 222–222*a*.) must be rendered quarterly, except when an officer's detail or assignment is altered by orders or by his going away on leave of absence.

Foreign Service officers are authorized to pay themselves from the fees they may collect as consular officers, if these are sufficient; if not, drafts may be drawn for the deficiency but not in greater amount than is actually due when the draft is drawn.

The officer in charge of a consular post is required to pay the salaries of all subordinate officers, including Foreign Service officers assigned or detailed to the office, and employees, who should receipt therefor on Forms Nos. 166 and 166a, from the fees received at the post, if these are sufficient; if not, drafts may be drawn by the officer in charge to complete the payments.

Each account should be accompanied by a certificate as to absence, signed by the officer rendering the account, showing how many days he has been absent from his post and duty during the quarter or period covered by the account and whether by leave or otherwise, as prescribed on the back of Form 222.

559. Canceled.

560. Canceled.

561.—Canceled.

562. *Final account and draft.*—It is a rule of the Comptroller General of the United States not to pay any draft for final account until all the accounts of the officer have been received and settled. Consular officers will therefore not draw on a final account but will receive a warrant from the Treasury for the amount found due by the Comptroller General after the final settlement has been made.

Fees

563. *Return of fees.*—All consular officers, including consular agents, will make a quarterly return (Form No. 101–101*a*.) to the Department of State, of all fees received by them during the quarter for services of whatsoever kind. If no fees have been received that fact must be stated on the return. Each return must

be signed by the officer in charge and sworn to before some person authorized to administer oaths.

Consuls general who are also diplomatic agents or ministers to make returns of fees. Consuls general who are accredited as diplomatic agents or ministers resident should forward the quarterly return of consular fees as above required.

564. *Residue of salary.*—When the amount received by any salaried consular officer on account of official fees during the quarter shall be less than his salary for such quarter, he may draw on the Secretary of State for the difference at fifteen days' sight. It must be stated on the face of the draft that it is for salary, designating the quarter for which it is drawn. The drafts of consular officers on account of their salaries will not be honored, unless drawn in the manner prescribed.

565. *General quarterly account current.*—The quarterly account must be stated on Form No. 222–222*a*.

Disposition of fees. The fees collected during each quarter will be applied: (1) to the payment of salaries of Foreign Service officers; (2) to Contingent Expenses, United States Consulates; (3) to the Allowance for Clerk Hire at United States Consulates; (4) to the Relief and Protection of American Seamen; (5) to any other authorized account; and (6) to expenses incurred under special instructions.

If, after the payment at the close of each quarter of the several accounts mentioned above, there shall still remain in the hands of the consul a surplus, he shall remit the same to the Department of State, by draft or money order payable to the Treasurer of the United States, or shall deposit it with any agent designated by the Secretary of State, taking a receipt therefor, which must accompany his next account.

When a consul general who is also diplomatic agent or minister resident shall have occasion to credit consular fees, it should be done in his account as prescribed above but passport fees received by a minister resident and consul general should be credited in his account for contingent expenses of foreign missions.

No authority can be given to a consular officer under which he can be relieved of his liability for fees or other public moneys in his possession deposited with banks or bankers, unless such deposits are made in Government depositories designated by the Department. All such deposits are made at his own risk; and in the event of loss by failure of the bank, or otherwise, the consul must make it good, and the sureties on his official bond are liable for such loss.

Interest accruing on public moneys in charge of a consular officer belongs to the Government and must be accounted for and treated as an official receipt.—*133 U. S., 273, 286.*

When expenses exceed fees. In case the fees collected should be insufficient to meet all the expenses of a consulate during any period for which an account is rendered the amount collected should be applied in the order given above until exhausted, and the total of the balances due should then be drawn for, in one draft if possible, the amount for each account being shown on the right hand margin of the draft.

566. *Neglect to report fees.*—It is provided by law that any consular officer of the United States who shall willfully neglect to render true and just quarterly accounts and returns of the business of his office and of moneys received by him for the use of the United States, or who shall neglect to pay over any balance of such moneys which may be due to the United States at the expiration of any quarter before the expiration of the next succeeding quarter, shall be deemed guilty of embezzlement of the public moneys, and shall, on conviction thereof before any court of the United States having jurisdiction of like offenses, be punished by imprisonment not exceeding one year and by a fine not exceeding $2,000, and shall be forever disqualified from holding any office of trust or profit under the United States.—*R. S. Sec. 1734.*

567. *Fees for services for foreign governments.*—That portion of the fees collected by consular officers for services for foreign governments which they are authorized by such governments to retain are official and must be accounted for as are other fees of office.—*18 Comp. Sec. 173.*

Substitute and Subordinate Officers

568. *Accounts of substitute consular officers when in charge.*—Every consular officer being under separate bond, substitute officers must render separate accounts, in their own names, of the business of their offices for the time they are in charge. A substitute officer must furnish with his accounts a certificate as to absence in the same manner as the principal officer as prescribed on the back of Form No. 222, using for this purpose the lower half of column two.

569. *Accounts of consular agents.*—Accounts of consular agents should be rendered quarterly, on the prescribed forms, to their principal officers.

Accounts for services by consular agents to American vessels and seamen will be settled at the close of the fiscal year. Amounts found due on these accounts will be remitted by Treasury warrants payable to the order of the consular agents. No payments can be made on the accounts until they have been adjusted by the Comptroller General of the United States. Consuls are forbidden to reimburse consular agents for such services, and consular agents must not pay themselves from fees on hand for any amounts due for services to American vessels and seamen.

Drafts

570. *Drawing and negotiating drafts.*—No drafts must be drawn except by a duly authorized and qualified consular officer. Drafts of consular officers must not be made in foreign money, but in the currency of the United States. In disposing of their drafts consular officers are expected to use their best discretion to negotiate them at the most favorable rates, and must furnish with the account in each case of sale of draft a voucher, as per Form No. 92, whether or not there is any loss or gain.

The right hand margin of every draft should show the purpose for which it is drawn, and the appropriations to which the amount is chargeable should be indicated. In no instance whatever should consular officers draw a draft or drafts for one purpose and use the proceeds for another. Every draft for expenses authorized by special instructions should refer explicitly to the date and file number of the instruction in which such authority was given. The same reference should appear in the corresponding account.

To prevent the dishonor of their drafts consular officers should use the form prescribed by the Department (Form No. 114.).

571. *Indorsements by procuration.*—Drafts drawn by consular officers are occasionally presented at the Department of State for payment by holders whose rights are derived from indorsements not made by parties to whom such bills have been made payable, but by other persons claiming to act for such parties by procuration, without producing their authority so to act. The accounting officers, who are required to see that no person receives money from the Treasury but by lawful title, can not recognize such indorsements unless on satisfactory proof of their sufficiency.

572. *On whom drafts are to be drawn.*—All drafts are to be drawn on the Secretary of State at fifteen days sight, acceptance waived and indorsements by procuration excepted.—*Comp. Dec., Sept. 2, 1913.*

573. *Payments of drafts an advance of public money.*—The payment of drafts of consular officers will be considered as an advance of public money to them for which they will be held accountable under their official bonds, and will not be considered as a payment or settlement on account.

574. *Drafts to be filled out in officers' handwriting.*—Whenever a draft is drawn by a consular officer, the blanks in the engraved forms furnished by the Department of State (Form No. 114.) must be filled up by the drawer in his own handwriting; and for still further protection against forgery, or the payment of fraudulent drafts, the draft should be sealed with the consular seal.

575. *Drafts of vice consuls in charge.*—When a vice consul assumes charge of a consulate, he should promptly notify the Secretary of State in order that any drafts drawn by him may be duly paid. No drafts of a vice consul in charge of a consulate will be paid unless the prescribed bond shall have been approved and filed with the Secretary of the Treasury.

576. *Loss and gain by exchange.*—Certificates or vouchers of consular officers (Form No. 92.) showing loss or gain by exchange must be rendered to the Comp-

troller General of the United States covering all drafts sold or purchased by them and should accompany the accounts in which the drafts are included. The certificates must be signed by the consul and the party or parties with whom the transaction took place and embody the following facts:

1. Date of bill of exchange sold or purchased.
2. Amount of bill of exchange; a. in United States currency.
   b. in foreign currency.
3. Loss or gain on sale or purchase of bill of exchange.
4. Amount received or paid for bill of exchange:
   a. in United States currency.
   b. in foreign currency.
5. Upon whom bill of exchange is drawn or to whom remittance is made, and on what account.

When there is a gain by exchange either on drafts sold or purchased by consular officers, the amount should be credited in the account current (Form No. 222–222*a*) as a miscellaneous receipt.

577. *Reduction to currency of the United States.*—The relative values of the standard moneys of the nations of the world, as prepared quarterly by the Director of the Mint and proclaimed by the Secretary of the Treasury as provided by statute (28 Stat. L. 552; 42 Stat. L. 858.), must be employed by consular officers to reduce to the currency of the United States the standard money of each foreign nation in transactions within its own jurisdiction involving such standard money.

578. *Indorsement of accounts and returns.*—The information called for on the reverse side of the forms of accounts and returns required to be submitted by consular officers should always be given in full.

CALVIN COOLIDGE

THE WHITE HOUSE,
July 31, 1926.

[No. 4487]

GOVERNMENT PRINTING OFFICE